No. 25-352

IN THE

Supreme Court of the United States

JASMINE YOUNGE,

Petitioner,

v.

FULTON JUDICIAL CIRCUIT DISTRICT ATTORNEY'S OFFICE, GEORGIA,

Respondent.

ON PETITION FOR A WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE ELEVENTH CIRCUIT

BRIEF IN OPPOSITION

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STATEMENT OF THE CASE

Legal Background

In Defendant's Answer to the Amended Complaint, Defendant expressly stated that Plaintiff Jasmine Younge was a member of the district attorney's personal staff. [ECF No. 53 at 10]. This term of art— "personal staff" — is the precise statutory language used in Title VII of the Civil Rights Act of 1964. 42. U.S.C. § 2000e(f).

In the context of Rule 8, this Court has repeatedly stated that the initial pleadings serve to provide "fair notice" to the parties of the claims and defenses relied on, if the notice is sufficiently factual to impart that notice. The Answer invoked the statutory language used in Title VII to describe those employees who are not covered by the statute. The admission was express and unequivocal. When the Defendant clearly admitted that the Plaintiff was a member of the district attorney's personal staff, invoking Title VII's specific term of art, it was sufficient to provide fair notice that the defense may rely on that admitted fact in its defense.

Beyond invoking the defense in the Answer, Defendant's counsel stated in a March 2022 discovery hearing before the district judge that the defense was relying on the personal staff exception. Counsel for Plaintiff did not object nor request any additional discovery on this issue. Further, after raising the defense in its motion for summary judgment, the magistrate assigned to the case offered to reopen discovery if there was any relevant issue on the personal staff exception the Plaintiff wanted to

explore: counsel could not articulate any additional discovery that was needed. Even ignoring the notice of the intent to rely on Younge's status as a member of the district attorney's personal staff in the Answer, Plaintiff was not remotely prejudiced by the district court and Court of Appeals deciding the case on the merits rather than a technicality.

Because the Petition does not account for the Answer in which the defense expressly provided notice that Younge was part of the district attorney's personal staff, the arguments within the Petition are inapplicable to this case.

Factual Background

Plaintiff worked at the District Attorney's Office for about two months in 2019 as then-District Attorney Paul Howard Jr.'s Deputy Chief of Staff and Director of Programs. [Pet. App'x 33a]. She was paid more than the attorneys employed by the Office, and only the district attorney was paid more. Her large salary was only made possible because she was a member of Howard's personal staff. [*Id.*]. To obtain the funding for her position, Howard had to execute an Official Oath in Support of Hiring Personal Staff. In the Oath, he swore that he had "reviewed the definition of personal staff" contained in Fulton County's policies and that he intended to hire Younge "to be a member of his personal staff." The signed Oath was placed in Younge's personnel file. [*Id.*].

Plaintiff testified that she reported only to Howard, that she was with him constantly, that her schedule was "pretty much the schedule that DA Paul Howard had," and that she was involved with "pretty

much everything" that had to do with the District Attorney's Office. [*Id.* at 35a].

Howard testified that in late June or early July, after numerous complaints were made about Younge by long-tenured staff and after he overheard Younge berating an attorney from the Major Crimes Division in the hallway outside his office, he told Younge that she was not working out and that he intended to terminate her. [ECF. No. 104-4]. A day or two later, Howard found a letter on his desk from Younge stating that she was pregnant. He later terminated her employment as he had told her he would.

REASONS FOR DENYING THE PETITION-

I. THE PERSONAL STAFF DEFENSE WAS ADEQUATELY PLEAD IN DEFENDANT'S ANSWER TO THE AMENDED COMPLAINT.

Petitioner Younge seeks a decision from this Court to prevent a defendant from raising an affirmative defense in a motion for summary judgment—even where there is no prejudice to a plaintiff—when it has not been plead in a defendant's answer. This petition is the first time that Respondent has understood Petitioner to assert that the "personal staff" defense was never invoked prior to the motion for summary judgment. In fact, Respondent affirmatively and unequivocally stated in its Answer that Petitioner was a member of the district attorney's personal staff, and raised it numerous times, both in hearings before the district court and in discovery responses. [ECF No. 53 at 10].

Beyond Title VII's precise term of art, "personal staff," being expressly relied on in the Answer, the defense was specifically discussed at a hearing before the district court, prior to the close of discovery and filing of the motion for summary judgment. Petitioner did not object nor request additional discovery. And even after the motion for summary judgment was filed, the district court provided Petitioner with the option to reopen discovery on the topic. But Petitioner could not articulate any further discovery she believed was needed on the issue.

In her Amended Complaint, Petitioner alleged that she was told by a staff member at Fulton County's human resources department that she was a member of the district attorney's executive staff. In fact, the Petitioner was compensated with the second-highest salary at the district attorney's office, behind only the district attorney. The ability to pay Petitioner such a high salary was because the district attorney signed an "Official Oath in Support of Hiring Personal Staff" swearing that Petitioner would serve as "a member of his personal staff." [Pet. App'x 33a]. This Oath permitted the district attorney to pay Petitioner a salary significantly higher than that of other employees, including attorneys.

In response to this allegation in the Amended Complaint, Respondent "admit[ted] that as Deputy Chief of Staff to the District Attorney[,] Plaintiff was a member of the District Attorney's…personal staff." [ECF No. 53 at 10]. In so doing, Respondent affirmatively stated that Petitioner was a member of the district attorney's personal staff—the precise term used in Title VII to describe the "exception."

Fed. R. Civ. P. 8(b)(1)(A) requires that defenses be stated in "short and plain terms." This Court has repeatedly held in the context of Rule 8 that the practical importance of the initial pleadings is to provide "fair notice" to the opposing party of the defense's assertions and set forth sufficient "factual matter" to fairly impart that notice. *See e.g., Bell Atl. v. Twombly*, 550 U.S. 544, 555-556 (2007). Expressly admitting that the Petitioner was a member of the district attorney's personal staff—Title VII's precise term of art—plainly satisfies this standard.[1] 42 U.S.C. § 2000e(f).

It has long been this Court's position that cases should be decided on the merits rather than procedural technicalities. "The Federal Rules reject the approach that pleading is a game of skill in which one misstep by counsel may be decisive to the outcome and accept the principle that the purpose of pleading is to facilitate a proper decision on the merits." *Foman v. Davis*, 371 U.S. 178, 181 (1962). The express admission in the Answer that Petitioner was a member of the district attorney's "personal staff" invoked Title VII's statutory language and was more than sufficient to provide "fair notice."

This Petition's support is built on a flawed foundation that simply ignores the initial pleadings. The "personal staff" defense was adequately raised in

[1] Fed. R. Civ. P. 10(b) requires only that defenses be stated in a numbered paragraph. This requirement was also satisfied by the admission that Petitioner was a member of the district attorney's personal staff.

the Answer. The express admission that Petitioner was a member of the district attorney's "personal staff" provided fair notice that the Defendant may rely on a term of art defined in the very statute that Petitioner chose to bring suit under. The factual circumstance that the Petition is premised on is not found in *this* case.

CONCLUSION

Petitioner Jasmine Younge has sought review of a decision of the district court and the Eleventh Circuit Court of Appeals. Petitioner asserts that the personal staff exception was never raised prior to the submission of the motion for summary judgment. In fact, Respondent District Attorney's Office provided express and unequivocal notice in its Answer that Younge was a member of the district attorney's personal staff.

Because the Petition asks this Court to accept this case based on a misstatement concerning the notice provided in the initial pleadings and by counsel in hearings before the district court prior to the submission of the motion for summary judgment, and because it is the established position of this Court to construe pleadings to facilitate decisions on the merits rather than technicalities, the Court should deny the Petition.

Respectfully submitted,

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